

National Judicial Academy Act, 2006

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National Judicial Academy Act, 2063 (2006)

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An Act Made to Make Provision Relating to National Judicial Academy

Preamble: Whereas, it is desirable to make provision for a National Judicial Academy to enhance the work capacity and professional competence of judges, employees and legal practitioners working in judicial bodies, and to conduct study and research in the field of law and justice,

Now, therefore, the House of Representatives has enacted this Act in the first year of the issuance of the Proclamation of the House of Representatives, 2063 (2006). Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "National Judicial Academy Act, 2063 (2006)".

(2) This Act shall be deemed to have commenced from the 24th day of Bhadra, 2063 (September 9, 2006). 2.

Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Academy" means the National Judicial Academy established pursuant to Section 3.

(b) "Council" means the Judicial Academy Council constituted pursuant to Section 6.

(c) "Committee" means the Executive Committee constituted pursuant to Section 9.

(d) "Executive Director" means the Executive Director deployed or appointed pursuant to subsection (2) of Section 17.

(e) "Judicial Body" means a court, special court, tribunal or adjudicative body established under the current law, and includes the Government Attorney Office and other bodies related to the field of law and justice.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter-2

Provisions Relating to Establishment of the Academy

3. Establishment of National Judicial Academy: (1) A National Judicial Academy is established for the purpose of enhancing the work capacity and professional competence of judges, employees and legal practitioners working in judicial bodies, and for conducting study and research in the field of law and justice.

(2) The central office of the Academy shall be located in the Kathmandu Valley, and the Academy may open its offices outside the Kathmandu Valley as required. 4. Academy to be an Autonomous and Corporate Body:

- (1) The Academy shall be an autonomous and corporate body with perpetual succession.
- (2) The Academy shall have a separate seal for its operation.
- (3) The Academy may, like an individual, acquire, use, sell or otherwise dispose of movable and immovable property.
- (4) The Academy may, like an individual, sue and be sued in its own name. 5.

Functions, Duties and Powers of the Academy: The functions, duties and powers of the Academy shall be as follows:- (a) To conduct training, orientation, conferences, workshops, seminars, interactions and other similar programs as required to enhance the work capacity and professional competence of judges, employees and legal practitioners working in judicial bodies, (b) To conduct research on subjects related to the field of law and justice and to publish research materials, (c) To provide or cause to provide advisory and information services on subjects related to law and justice, (d) To coordinate with the Supreme Court, the Office of the Attorney General, the Ministry of Law, Justice and Parliamentary Affairs, the Judicial Council, the Judicial Service Commission and the Nepal Legal Practitioners' Council to enhance the work capacity and professional competence of judges, employees and legal practitioners working in judicial bodies, (e) To conduct training, workshops, conferences as required to enhance the work capacity and professional competence of employees performing judicial functions in quasi-judicial bodies, (f) To assist concerned bodies in rectifying deficiencies, weaknesses and errors observed in the field of law and justice, (g) To train human resources working in judicial bodies regarding new technologies and practices developed in the field of law and justice, (h) To integrate judicial training programs as an integral part of justice administration, (i) To integrate judicial training programs with the objective of making justice swift, simple and accessible, (j) To enhance knowledge and skills regarding justice delivery, execution of judgments, law drafting and procedures related to justice administration, and to link training with career development, (k) To conduct programs relating to developing the legal profession as a competitive, competent, service-oriented and effective profession, (l) To conduct seminars, workshops, conferences, and panels as required by involving experts on relevant subjects for the solution of problems observed in the field of law and justice, (m) To collaborate with judicial training institutions of other countries to make training programs standard and effective by establishing contact, (n) To act as a liaison body between the Government of Nepal and international agencies and organizations regarding capacity development programs to be conducted in the field of law and justice, (o) To conduct or cause to conduct programs jointly with the Government of Nepal, national or international agencies and organizations as required to enhance the work capacity and professional competence of judges, employees and legal practitioners working in judicial bodies, and for study and research in the field of law and justice, (p) To raise necessary resources and means from the Government of Nepal, foreign governments, international agencies and organizations or individuals for the operation and development of the Academy's programs, (q) To arrange necessary diverse programs such as observation visits, foreign training, workshops, and seminars to foreign judicial institutions and training institutions for the capacity development of judicial human resources, (r) To perform or cause to perform other functions as prescribed.

Chapter-3

Provisions Relating to the Council

6. Constitution of the Council: (1) There shall be a Judicial Academy Council to function as the supreme body of the Academy.

(2) The Council shall be constituted as follows:-

Position Role

Chief Justice Chairperson

Minister for Law, Justice and Parliamentary Affairs Member

Vice-Chairperson, National Planning Commission Member

Two judges from among the judges of the Supreme Court Member

Attorney General Member

One judge from among the retired judges of the Supreme Court Member

Dean, Faculty of Law, Tribhuvan University Member

One judge from among the judges of the High Court Member

One person from among persons who are professors of law and have taught for at least five years Member

President, Nepal Bar Association Member

One judge from among the judges of the District Court Member

Three persons from among persons who have obtained a postgraduate degree in law and have worked for at least fifteen years in the field of justice and law, ensuring representation of women, indigenous nationalities and Dalits Member

Executive Director Member-Secretary

(3) The members pursuant to clauses (d), (f), (g), (h) and (j) of subsection (2) shall be nominated by the Chief Justice, and the members pursuant to clause (k) of subsection (2) shall be nominated by the Government of Nepal. The term of office of members so nominated shall be two years.

(4) The Council may, if deemed necessary, invite any expert working in the field of law and justice to participate in the meeting of the Council as an observer. 7.

Meeting of the Council: (1) The meeting of the Council shall be held at least twice a year. (2) The meeting of the Council shall be called by the Member-Secretary of the Council on the direction of the Chairperson of the Council. (3) The Member-Secretary of the Council shall provide the Members of the Council with a notice including the agenda for discussion in the meeting at least seven days in advance. (4) If more than fifty percent of the total number of Members currently holding office are present in the Council, it shall be deemed to constitute a quorum for the meeting of the Council. (5) The meeting of the Council shall be presided over by the Chairperson of the Council, and in his/her absence, by a Member chosen by the Members of the Council from among themselves. (6) The opinion of the majority shall prevail in the meeting of the Council, and in case of a tie, the person presiding over the meeting shall have the casting vote. (7) The decision of the meeting of the Council shall be authenticated by the Member-Secretary of the Council. (8) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. 8. Functions, Duties and Powers of the Council: The functions, duties and powers of the Council shall be as follows:- (a) To determine policies relating to training and research programs to be conducted by the Academy, (b) To approve the long-term plan of the Academy, (c) To approve the annual program and budget of the Academy, (d) To review the work done by the Academy, (e) To make necessary rules for the Academy, (f) To perform other functions as prescribed. Chapter-4 Provisions Relating to the Committee 9.

Constitution of the Committee: (1) There shall be an Executive Committee to perform the functions to be carried out on behalf of the Academy, unless otherwise provided in this Act. (2) The Committee shall be constituted as follows:- (a) Executive Director ? Chairperson (b) Secretary, Ministry of Law, Justice and Parliamentary Affairs ? Member (c) Secretary, Judicial Council ? Member (d) Registrar, Supreme Court ?

Member (e) Senior-most Deputy Attorney General, Office of the Attorney General ? Member (f) Secretary, Nepal Bar Association ? Member (g) Senior employee of the Academy designated by the Council ? Member-Secretary (3) The Committee may, if deemed necessary, invite any expert working in the field of law and justice to participate in the meeting of the Committee as an observer. 10. Meeting of the Committee: (1) The meeting of the Committee shall be held as required. (2) The meeting of the Committee shall be called by the Member-Secretary of the Committee on the direction of the Chairperson of the Committee. (3) The Member-Secretary of the Committee shall provide the Members with a notice including the agenda for discussion in the meeting at least three days in advance. (4) If more than fifty percent of the total number of Members currently holding office are present in the Committee, it shall be deemed to constitute a quorum for the meeting of the Committee. (5) The meeting of the Committee shall be presided over by the Chairperson of the Committee, and in his/her absence, by a Member chosen by the Members of the Committee from among themselves. (6) The opinion of the majority shall prevail in the meeting of the Committee, and in case of a tie, the person presiding over the meeting shall have the casting vote. (7) The decision of the Committee shall be authenticated by the Member-Secretary of the Committee. (8) Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself. 11.

Functions, Duties and Powers of the Committee: The functions, duties and powers of the Committee shall be as follows:- (a) To formulate plans of the Academy, (b) To formulate policies relating to training and research programs to be conducted by the Academy, (c) To prepare the annual program and budget of the Academy and submit it to the Council, (d) To conduct or cause to conduct research and training related programs and to provide advisory services, (e) To evaluate or cause to evaluate training programs conducted by the Academy, (f) To make arrangements for periodic exchange of services of experienced persons from various fields to make training result-oriented and practical, (g) To perform or cause to perform other functions as prescribed. Chapter-5 Provisions Relating to Training Programs 12. Power to Determine Training Program and Area: (1) The Academy may, after consultation with the judicial body, determine training programs and related areas as required. (2) On the basis of the training program and area determined pursuant to subsection (1), the Academy shall determine the training and evaluation methods, materials and subjects. 13. To Cause Evaluation of Training Program: (1) The Academy shall, with the assistance of relevant experts, cause the evaluation of the programs conducted by it from time to time. (2) On the basis of the evaluation made pursuant to subsection (1), the Academy may modify or change its training program as required. 14. Power to Use Training Technology: The Academy may use useful and modern training technology in its training programs, considering the nature of the work of the trainees and the subject matter. 15. Power to Arrange Training Materials: The Academy may arrange necessary and suitable training materials for the training programs. 16. To Prepare List of Trainers: (1) The Academy shall prepare a list of trainers of persons capable of providing training or orientation on matters of law and justice. (2) While preparing the list pursuant to subsection (1), the Academy shall, as far as possible, prepare separate lists by subject and area. (3) The list prepared pursuant to subsection (1) shall be updated by the Academy from time to time. Chapter-6 Provisions Relating to Executive Director and Employees 17.

Provisions Relating to Executive Director: (1) There shall be an Executive Director to function as the administrative chief of the Academy. (2) The Chief Justice may, on the recommendation of the Judicial Council, deploy or appoint a person to the post of Executive Director from among persons who are serving as a judge of the Supreme Court, serving as a Chief Judge or judge of a High Court, have served as a judge of the Supreme Court or Chief Judge or judge of a High Court, or are qualified to be a judge of a High Court, and who have competence in management, research and training work. (3) The term of office of the Executive Director shall be a maximum of four years, and if his/her work is found satisfactory, he/she may be

re-deployed or re-appointed for one term. Provided that a sitting judge deployed to the post of Executive Director may be reverted to work as a judge before the completion of his/her term on the recommendation of the Judicial Council. (4) The remuneration and other terms and conditions of service and facilities of the Executive Director shall be as prescribed. 18. Power to Remove Executive Director from Post: (1) If the Executive Director fails to faithfully discharge his/her official responsibilities, or if his/her work is not found satisfactory, or if the Council is of the opinion that he/she has engaged in misconduct, the Chief Justice may, on the recommendation of the Judicial Council, remove him/her from the post of Executive Director before the expiry of the term of office. Provided that, prior to such removal, he/she shall not be deprived of an opportunity to submit his/her defense. (2) Notwithstanding anything contained in subsection (1), an Executive Director deployed from the post of a sitting judge shall be subject to action on grounds of misconduct according to the law relating to his/her service conditions. 19. Functions, Duties and Powers of the Executive Director: The functions, duties and powers of the Executive Director shall be as follows:- (a) To implement or cause to implement the decisions and directives made by the Council and the Committee, (b) To prepare the long-term plan, annual program and budget of the Academy and submit them to the Council and the Committee, (c) To submit the progress report and annual report of the Academy to the Council and the Committee, (d) To inspect, monitor and evaluate or cause to inspect, monitor and evaluate training programs conducted by the Academy, (e) To perform other functions as prescribed. 20.

Power to Deploy Judge for Work of Academy: Upon the request of the Academy, a judge of a High Court or District Court may be deployed on deputation for a specified period to carry out any work related to research, investigation or training of the Academy. 21. Provisions Relating to Employees of the Academy: (1) There shall be employees in the Academy as prescribed. (2) The appointment, remuneration, terms of service and facilities of the employees of the Academy shall be as prescribed. (3) Upon the request of the Academy, an employee of the Nepal Judicial Service may be deployed on deputation for a specified period to perform the work of the Academy. Chapter-7 Provisions Relating to Fund and Audit 22. Fund of the Academy: (1) The Academy shall have a separate Fund, and the following amounts shall be deposited in that Fund:- (a) Amount received from the Government of Nepal by way of grant, (b) Amount received from any foreign government, person, international agency or organization, (c) Amount received from advisory services and research work conducted by the Academy, (d) Amount received from the sale of publications published by the Academy, (e) Amount received from other sources. (2) Before receiving the amount pursuant to clause (b) of subsection (1), the Academy shall obtain the approval of the Government of Nepal. (3) The amount of the Fund of the Academy shall be deposited by opening an account in a bank. (4) All expenses incurred in the name of the Academy shall be borne from the amount deposited in the Fund pursuant to subsection (1). (5) The operation of the account of the Fund of the Academy shall be as prescribed. 23. Accounts and Audit: (1) The accounts of income and expenditure of the Academy shall be maintained in accordance with the current law. (2) The audit of the Academy shall be conducted by the Auditor General. Chapter-8 Miscellaneous 24. Power to Constitute Sub-Committee or Task Force: (1) The Academy may, as required, constitute a sub-committee or task force for any work to be done pursuant to this Act. (2) The functions, duties, powers and procedures of a sub-committee or task force constituted pursuant to subsection (1), and the facilities to be received by the members of such sub-committee or task force, shall be as prescribed by the Academy. 25.

Annual Report to be Published: (1) The Academy shall, each year, prepare and publish publicly a report relating to its activities. (2) The report pursuant to subsection (1) shall include, among other things, the programs conducted by the Academy during the year, the amount received, the cost incurred in conducting the programs, the achievements from the programs, and the improvements to be made in the future. 26. Delegation of Powers: (1) The Council may, as required, delegate any of the powers conferred on it under

this Act to the Committee or the Executive Director. (2) The Committee may, as required, delegate any of the powers conferred on it under this Act to a sub-committee or task force constituted pursuant to Section 24, the Executive Director or an officer-level employee of the Academy. (3) The Executive Director may, as required, delegate any of the powers conferred on him/her under this Act to any officer-level employee under his/her supervision.

27. Contact with Government of Nepal: The Academy shall make contact with the Government of Nepal through the Ministry of Law, Justice and Parliamentary Affairs.

28. Power to Make Rules: The Academy may make necessary rules for the implementation of the objectives of this Act. Provided that, while making rules relating to remuneration, facilities and matters involving financial burden on the Government of Nepal, prior consultation with the Government of Nepal shall be made.

29. Effect of Lapse of the National Judicial Academy Ordinance, 2062 (2005): After the lapse of the National Judicial Academy Ordinance, 2062 (2005), unless a contrary intention appears, such lapse shall not-

- (a) Revive anything not in force or not existing at the time of the lapse of that Ordinance.
- (b) Affect anything done in accordance with that Ordinance or any action already taken or anything already enjoyed after complying with the procedures under that Ordinance.
- (c) Affect any right, facility, duty or liability acquired, obtained or enjoyed under that Ordinance.
- (d) Affect any penalty, punishment or forfeiture imposed under that Ordinance.
- (e) Affect any action or proceeding taken in relation to any such right, facility, duty, liability or penalty, punishment, and any such legal proceeding or measure may be initiated, continued or enforced as if that Ordinance had not lapsed.